

111	2026-01548956 Audenis vs. Airbnb, Inc	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Airbnb, Inc.'s unopposed motion to compel arbitration of Patrick Audenis' claims is granted. Defendant has established a valid arbitration agreement between the parties. Plaintiff filed a response to Defendant's motion stating that he does not oppose and has voluntarily initiated arbitration proceedings before the American Arbitration Association, and that arbitration is presently pending. Accordingly, the motion is granted, and this matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The case management conference is vacated. The Court sets a status conference on October 4, 2027 at 10:00 a.m. in Dept. C27. At least 5 court days prior, Defendant is ordered to file a status conference report updating the Court on the status of arbitration. Defendant shall give notice.
112	2025-01526956 Mandell vs. O'Donnell	1. Petition for Writ 2. Case Management Conference Petitioner Jeffrey Mandell's Petition for a peremptory writ of mandamus requiring Respondents Brendan O'Donnell and BodEv, Inc. to allow him to inspect and copy the records of BodEV, Inc. pursuant to Corp. Code § 1603(a) is granted. Code of Civil Procedure §1085 authorizes any court to issue a writ of mandate to "any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person." (Code Civ. Proc., § 1085.) One such instance is where a shareholder seeks such an order through a Corporations Code section 1601 demand, or a director seeks such an order through a Corporations Code section 1602 demand for inspection and copying of corporate records and documents. There are two essential requirements to the issuance of an ordinary writ of mandate under Code of Civil Procedure section 1085: (1) a clear, present and ministerial duty on the part of the respondent, and (2) a clear, present and beneficial right on the part of the petitioner to the performance of that duty. (<i>California Ass'n for Health Services at Home v. Department of Health Services</i> (2007) 148 Cal.App.4th 696, 704.) A shareholder (or group of shareholders) owning at least 5% of the corporation's outstanding voting shares has an <i>absolute, unconditional right</i> to inspect the list of shareholders. (Corp. Code §1600(a).) A shareholder also has a <i>limited</i> right to inspect the corporation's accounting books, records, as well as minutes of proceedings of the shareholders, board and board committees. Such records and minutes are open to inspection upon <i>written</i> demand showing a "<i>purpose reasonably related</i> to the holder's interests as a shareholder ..." (Corp. Code §1601(a)(1).)

In comparison, directors of a corporation have an *absolute* right to inspect “all books, records and documents of every kind,” as well as the corporation's *physical properties*. (Corp. Code §1602.) Such inspection by a director may be made in person or by agent or attorney and the right to inspect includes the right to make copies or extracts. (*Ibid.*)

The Petition was filed on 11/14/25. On 1/6/26, Respondents filed their Answer, which is not verified. (ROA 58.)

“Ordinarily an answer to a petition for an extraordinary writ, like the petition itself, must be verified. (*Epstein v. Superior Court* (2011) 193 Cal.App.4th 1405, 1409 [citing Code Civ. Proc., § 1089; Cal. Rules of Court, rule 8.487(b)(1)].)

“One possible consequence of filing a return that contains neither a demurrer nor a verified answer is that the return will be stricken and not considered in determining the merits of the mandate petition.” (*Agricultural Labor Relations Bd. v. Superior Court* (2016) 4 Cal.App.5th 675, 681 [citing *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1287].)

Alternatively, the Court could accept all well-pleaded and verified allegations in the writ petition as true. (*Id.* at 682.) In doing this, the Court treats the response as “return by demurrer, because a demurrer admits the facts pleaded in a writ petition.” (*Id.*; see also *Central Bank v. Superior Court* (1978) 81 Cal.App.3d 592, 600 (“the unverified answer before us is ineffective in denying the allegations of the verified petition, and we deem those allegations... to be true”).)

Based on the foregoing, the Court in determining the Petition, accepts the allegations therein as true and admitted by Respondents. Even if the Answer had been properly verified, Respondents failed to file a substantive opposition to Petitioner’s Motion, stating only that “Respondents’ Oppose the Motion for Writ for reasons previously stated,” and referencing Respondents’ ex parte application which the Court denied on 7/21/26. (ROA 141, 142.) “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (*People v. Stanley* (1995) 10 Cal.4th 764, 793; see also *Nationwide Ins. Co. of America v. Tipton* (2023) 91 Cal.App.5th 1355, 1365; CRC, Rule 3.1113(b).)

Petitioner establishes in the Petition and moving papers that he is a shareholder owning at least 5% of the corporation's outstanding voting shares. (Mandell Decl., ¶¶ 3, 4, 6, 9.) Thus, he has a right to inspect the list of shareholders as well as the corporation's accounting books, records, as well as minutes of proceedings of the shareholders, board and board committees. (Corp Code, §§ 1600(a), 1601(a)(1).)

And, Petitioner has established that the inspection is sought in connection with his interests as a shareholder. (Mandell Decl., ¶ 34.)

Petitioner also alleges in the Petition and submits evidence that he remains a director. (Verified Petition, Ex. A, ¶¶ 31-32, 34, 35, 50; Mandell Decl., ¶¶ 3-12, 40-39.) Thus, pursuant to Corp. Code §1602, Petitioner has an absolute right to inspect all books and records of the corporation.

Upon a showing by the moving party, the burden shifts to the corporation to show “why the inspection should be curtailed by ‘just and proper conditions.’” (*Fowler v. Golden Pacific Bancorp, Inc.* (2022) 80 Cal.App.5th 205, 217.) Respondents have not met this

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As a result, pursuant to the foregoing, Respondents are ordered to allow Petitioner to inspect the corporate records of BodEv, Inc. pursuant to Corp. Code, § 1600 et seq. within the next 15 days at a time and place mutually convenient to both parties.

Petitioner shall prepare a proposed judgment and give notice.

The case management conference is vacated.